



CHAPTER xxxiii.

An Act to authorise the Undertakers of the Aire and Calder Navigation to construct a training wall or embankment in the River Ouse to confer further powers on the Undertakers in connection with their undertaking to amend the Acts relating thereto and for other purposes. A.D. 1914.
[8th July 1914.]

WHEREAS by the Act 10 and 11 William III. cap. XIX. and various other Acts (local and personal) powers for making and keeping navigable the Rivers of Aire and Calder in the county of York and for constructing and maintaining certain canals docks and works in that county and other powers have been conferred on the Undertakers of the Aire and Calder Navigation (hereinafter referred to as "the Undertakers"):

And whereas the Undertakers are conservators of the lower portion of the navigation of the River Ouse in the said county of York and it is expedient that the Undertakers should be empowered to construct the training wall or embankment authorised by this Act:

And whereas it is expedient that the deed of conveyance and covenant dated the 31st day of December 1910 set forth in the First Schedule to this Act should be confirmed and that the Undertakers and the urban district council of Goole should be authorised to carry into effect the covenants on their respective parts contained in the said deed and that all works and things executed and done in pursuance of the said deed and the expenditure of money in connection therewith should be sanctioned and confirmed:

And whereas the release also dated the 31st day of December 1910 set forth in the Second Schedule to this Act was executed

A.D. 1914. for the purpose of enabling full effect to be given to the provisions of the said recited deed of conveyance and covenant and it is expedient that the said release should also be confirmed:

And whereas by the indenture dated the 17th day of May 1912 set forth in the Third Schedule to this Act a portion of the south bank and foreshore of the Dutch River situate in the parish and urban district of Goole and the southern moiety of the said river co-extensive therewith were conveyed to the Undertakers in consideration of a covenant by the Undertakers to maintain and keep the same in good repair:

And whereas it will be of advantage to the inhabitants of the town of Goole and of the neighbouring district that the said portion of bank and foreshore of the said Dutch River should be maintained by the Undertakers and it is expedient that the conveyance and covenant contained in the said indenture should be confirmed:

And whereas it is expedient that the time for the completion of the works and for the purchase of the lands mentioned in this Act should be extended:

And whereas it is expedient that such further powers should be conferred on the Undertakers for the purposes of their undertaking and such further provisions made in relation to that undertaking as are contained in this Act:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and plans of the lands which may be taken for the purposes or under the powers of this Act and books of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerk of the peace for the west riding of the county of York and are hereinafter respectively referred to as the deposited plans sections and books of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Aire and Calder Navigation Act 1914. A.D. 1914.
Short title.

2. The following Acts and parts of Acts (that is to say):— Incorporation of Acts.

The Lands Clauses Acts;

Sections 16 and 18 to 24 inclusive and the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and with respect to mines lying under or near the railway and with respect to the settlement of disputes by arbitration; and

Part II. (relating to extension of time) of the Railways Clauses Act 1863;

as respectively amended by any subsequent Act are so far as the same are applicable for the purposes of and are not varied by or inconsistent with this Act incorporated with and form part of this Act:

Provided that the incorporated provisions of the Railways Clauses Consolidation Act 1845 shall apply only to the training wall or embankment by this Act authorised and works in connection therewith.

3. In this Act unless there be something in the subject or context repugnant to such construction— Interpretation.

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings;

The expression “the Undertakers” means the Undertakers of the Aire and Calder Navigation;

The expression “the trustees” means the trustees of the Aire and Calder Navigation;

The expression “the navigation” means the Aire and Calder Navigation;

The expression “the conservancy board” means the Humber Conservancy Board;

The expression “high-water mark” means high-water mark of ordinary spring tides Admiralty datum;

The expression “the Act of 1884” means the Ouse (Lower) Improvement Act 1884.

A.D. 1914. In the Acts wholly or partially incorporated with this
 — Act—

The expressions “the company” “the undertakers” and
 “the promoters of the undertaking” and other like
 expressions mean the Undertakers ;

The expressions “railway” “work” and “the under-
 taking” or other like expressions in the Lands Clauses
 Acts and in the provisions of the Railways Clauses
 Consolidation Act 1845 incorporated with this Act
 mean the training wall or embankment and works
 connected therewith authorised by this Act and the
 expression “centre of the railway” in the last-
 mentioned provisions means any part of such works ;

The expression “the railway and works” in the Part of
 the Railways Clauses Act 1863 incorporated with this
 Act means the several works the time for the
 completion of which is hereby extended.

Recovery of
 demands.

4. Proceedings for the recovery of any demand made
 under the authority of this or any incorporated enactment
 whether provision is or is not made for the recovery in any
 specified court or manner may be taken in any county court
 having otherwise jurisdiction in the matter provided that the
 demand does not exceed the amount recoverable in that
 court.

Power to
 execute
 works.

5. Subject to the provisions of this Act the Undertakers
 may make and maintain in the lines and according to the
 levels shown on the deposited plans and sections the training
 wall or embankment in the parish of Ousefleet in the rural
 district of Goole in the west riding of the county of York
 hereinafter described and may make and maintain in connection
 with the said work and from time to time alter and repair all
 necessary and convenient drains culverts arches training and
 other walls dams embankments flood-banks piers jetties landings
 groynes dolphins moorings buoys lights beacons tide-gauges
 staiths grids slipways quays wharves warehouses sheds workshops
 buildings light-keepers' houses cranes roads approaches rails and
 other works and conveniences and do all such things as may be
 necessary or convenient for the purposes aforesaid and may
 enter upon take and use such of the lands delineated on the
 deposited plans and described in the deposited books of
 reference as may be required for those purposes.

The work hereinbefore referred to and authorised by this Act is— A.D. 1914.

A training wall or embankment in the River Ouse commencing on the right bank of the said river at the boundary between the parish of Whitgift and the parish of Ousefleet and terminating on an imaginary straight line drawn across the said river at its confluence with the River Trent from the marking or boundary post at Faxfleet Ness to the marking or boundary post at Bosom Cross at a point in the said river 850 yards or thereabouts measured in a north-north-easterly direction from the last-mentioned marking or boundary post.

6. Subject to the provisions of this Act and without prejudice to the rights of the Undertakers under any other Act deed or agreement the Undertakers may within the limits of deviation of the training wall or embankment authorised by this Act shown on the deposited plans temporarily cross open or break up divert alter stop up remove or otherwise interfere with any roads rivers canals footpaths railways ferries streams watercourses sewers drains culverts flood-gates flood-banks sluices staiths piers jetties landings gangways wharves laybyes moorings groynes grids gas and water mains and pipes telegraphic telephonic electric and other wires pipes posts and apparatus and other works so far as may be necessary for the purposes of the said training wall or embankment the Undertakers providing or causing to be provided to the reasonable satisfaction of the parties responsible therefor proper substitutes before interrupting the supply or flow of gas water or sewage and providing where necessary temporary substitutes before interrupting the traffic on any road or footpath Provided that in the exercise of the powers of this section the Undertakers shall do as little damage as may be and shall subject and without prejudice as aforesaid make full compensation to all parties entitled thereto for all damage sustained by reason of the exercise of such powers the amount thereof to be determined in the manner provided by the Lands Clauses Acts for settling cases of disputed compensation Provided also that nothing in this section shall extend to authorise any interference with the telegraphic or telephonic pipes wires posts and other works or property of His Majesty's Postmaster-General and that nothing in this section shall extend to authorise any

Power to
cross divert
roads &c.

A.D. 1914. — — interference with any works of any undertakers within the meaning of the Electric Lighting Act 1882 otherwise than in accordance with the provisions of section 15 of that Act.

Power to deviate.

7. In the construction of the training wall or embankment by this Act authorised the Undertakers may deviate from the levels thereof shown on the deposited sections to any extent not exceeding in any place five feet but they shall not make any such deviation exceeding two feet without the previous consent of the owners and occupiers of the land in or abutting upon which such deviation is intended to be made and the Undertakers may subject as hereinafter provided deviate from the lines delineated on the deposited plans to any extent within the limits of lateral deviation delineated on those plans Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Power to acquire additional lands.

8. The Undertakers may for the purposes of the training wall or embankment by this Act authorised and works connected therewith (in addition to any lands they are authorised to acquire and hold under the other powers of this Act) from time to time by agreement acquire in fee either by purchase or by way of exchange or on lease or otherwise and hold any land and foreshore not exceeding in the whole ten acres and any right easement or privilege therein thereunder thereover or thereupon not being an easement of water.

Undertakers may provide quarries &c.

9. The Undertakers may for the purposes of the construction and maintenance of the training wall or embankment by this Act authorised and works connected therewith by agreement and as part of the lands which they are hereinbefore authorised to acquire for those purposes purchase or take on lease and hold and subsequently dispose of any quarry or quarries of stone lime or other materials conveniently situated for the purpose and may work the same in such manner and by means of such engines rails staiths cranes lighters or other craft and other apparatus and appliances as they think fit and convey the materials gained therefrom to the places where they are to be used or disposed of for the purposes aforesaid and the cost thereof and of working and conveyance aforesaid shall be deemed to be expenditure in connection with the said training wall or embankment and works.

10. The Undertakers may from time to time build purchase hire use and provide all such engines pumps lighters hoppers dredgers diving bells and other machinery implements apparatus and appliances as they may think necessary for or in connection with the construction and maintenance of the training wall or embankment by this Act authorised and works connected therewith and any moneys expended by the Undertakers for those purposes shall be deemed to be expenditure in connection with the said training wall or embankment and works.

A.D. 1914.
 Undertakers may provide apparatus for purposes of Act.

11. The Undertakers shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade may from time to time require or approve If the Undertakers fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Lights on works during construction.

12. The Undertakers shall at the outer extremity of their works below high-water mark exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade shall from time to time direct.

Permanent lights on works.

If the Undertakers fail to comply in any respect with the provisions of the present section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

13. All moneys expended or received by the Undertakers in connection with the training wall or embankment authorised by this Act and works in connection therewith and any fore-shore of the River Ouse acquired for the purposes of any such works shall be deemed to form part of the expenditure or receipts of the Undertakers for the purposes of or under the Act of 1884 and shall according to the nature thereof be carried to the debit or credit as the case may be of the Lower Ouse Improvement Capital Account or the Lower Ouse Improvement Revenue Account and the provisions of the Act of 1884 which relate to money expended or received for the purposes of or under that Act shall apply to the expenditure and receipts of

Act of 1884 to apply to expenditure and receipts in connection with training wall &c.

A.D. 1914. the Undertakers in connection with the said training wall or
 — embankment works and foreshore.

Property &c.
 to stand
 vested in
 trustees of
 navigation.

14. All lands purchased taken or used and all buildings works and property erected or acquired by virtue of the powers of this Act for the purposes of or in connection with the training wall or embankment by this Act authorised, and works connected therewith shall subject to the provisions of this Act stand vested in trust for those purposes of this Act in the trustees with the like indemnification as the property in the navigation is by virtue of the Acts heretofore passed relating to the navigation vested in the trustees.

Works to
 form part of
 general un-
 dertaking.

15. The training wall or embankment by this Act authorised and the works connected therewith shall subject to the provisions of this Act form part of the general undertaking of the Undertakers and the Undertakers may from time to time use for the purposes of their general undertaking any lands vested in or acquired by them or the trustees on their behalf for the purposes of or in connection with the said training wall or embankment and works which may not be required for those purposes.

Period for
 completion
 of works.

16. If the training wall or embankment by this Act authorised is not completed within seven years from the passing of this Act then on the expiration of that period the powers granted to the Undertakers for making and completing the same or otherwise in relation thereto shall cease except as to such part thereof as is then completed.

For protec-
 tion of Con-
 servancy
 Board.

17. The following sections of the Act of 1884 (that is to say) :—

- Section 8 Works on foreshore of Humber Conservancy Commissioners ;
- Section 9 For protection of the Humber ;
- Section 10 Works not to interfere with the Humber Conservancy river improvements ;
- Section 11 For protection of the River Trent ;
- Section 98 Saving rights of the Humber Conservancy ;
 and
- Section 106 Humber Conservancy Commissioners may
 abate works abandoned on their foreshore ;

shall unless otherwise agreed between the conservancy board and the Undertakers apply mutatis mutandis to the training wall or embankment and works in connection therewith and the powers in relation thereto respectively by this Act authorised and conferred and in such application the Humber Conservancy Commissioners shall mean the conservancy board and the River Humber shall include so much of the River Trent as lies within the jurisdiction of the conservancy board. A.D. 1914.

18. Whereas it is desirable that the part of the training wall or embankment authorised by this Act between the point marked on the deposited plans as distant one mile and four furlongs from the commencement of the said training wall or embankment and the termination thereof namely on the line of boundary between the respective jurisdictions of the Undertakers and the conservancy board (hereinafter called "the eastern part of the said training wall or embankment") should be constructed in conjunction with works of river improvement to be carried out on the Rivers Humber and Trent at or near the confluence of those rivers with the River Ouse Now it is hereby enacted—

Suspension
of power to
construct
eastern part
of training
wall.

- (a) That unless and until otherwise agreed between the Undertakers and the conservancy board and notwithstanding anything contained in this Act the Undertakers shall not under the powers of this Act commence to construct any portion of the eastern part of the said training wall or embankment unless and until statutory powers shall have been obtained for the carrying out of works of river improvement at or near the confluence of the Rivers Ouse and Trent with the Humber in conjunction with the eastern part of the said training wall or embankment and if and when such agreement shall be entered into or statutory powers as aforesaid shall have been obtained the construction of the eastern part of the said training wall or embankment shall subject to the provisions of this Act be carried out by and at the cost of the Undertakers and at such times and subject to such conditions stipulations and limitations and in such manner as may be provided

A.D. 1914.

in the said agreement or the Act or Order conferring such statutory powers as aforesaid:

- (b) That nothing in this Act shall be deemed to prejudice or affect the exercise of the powers contained in section 100 of the Humber Conservancy Act 1907.

Power to
divert foot-
path.

19. The Undertakers may divert the public footpath in the parish and urban district of Goole situate on the floodbanks adjoining the right banks of the Dutch River and the River Ouse leading from Swinefleet Road to the approach to Bennett's Jetty in the manner shown upon the deposited plans or in such other manner upon the land of the Undertakers lying between the said Swinefleet Road and the River Ouse in Old Goole as may be agreed upon between the Undertakers and the district council of the said urban district of Goole and subject to the provisions of this Act may stop up and cause to be discontinued as a footpath so much of the existing footpath as lies between the point near Prospect House where such footpath branches from the said Swinefleet Road and the point where the said approach to Bennett's Jetty joins the floodbank of the River Ouse as shown on the said plans. Provided that the said portion of footpath shall not be stopped up until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use. As from the date of the said certificate all rights of way over or along the said portion of footpath to be stopped up shall be extinguished and the Undertakers may appropriate and use for the purposes of their undertaking the site of the portion of footpath stopped up. Provided also that the Undertakers shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to
acquire cer-
tain lands.

20. Subject to the provisions of this Act and in addition to the other lands which the Undertakers are by this Act authorised to acquire the Undertakers may enter upon take use and hold for the purposes of their undertaking all or any part of the lands hereinafter described and delineated on the deposited plans and described in the deposited books of reference and the provisions of the Lands Clauses Consolidation Act 1845 with

respect to the sale of superfluous lands shall not apply to such lands (that is to say):— A.D. 1914.

Certain lands on or near the south bank of the Barnsley Canal in the parish of Walton in the rural district of Wakefield in the west riding of the county of York being the lands numbered “ 23 ” on the sheet No. CCXLVIII—12 of the 1/2500 Ordnance Survey map of Yorkshire (West Riding) second edition 1907.

21. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Undertakers any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Power to take easements &c. by agreement.

22. The powers of the Undertakers for the compulsory purchase of lands for the purposes of the training wall or embankment authorised by this Act shall cease after the expiration of five years from the passing of this Act and the powers of the Undertakers for the compulsory purchase of the other lands which the Undertakers are by this Act authorised to acquire shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

23. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Undertakers shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. As to private rights of way over lands taken compulsorily.

24. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited books of reference the Undertakers after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the west riding Correction of errors in deposited plans and books of reference.

A.D. 1914. of the county of York for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from accident or mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the west riding of the county of York and a duplicate thereof shall also be deposited with the clerk of the district council and with the clerk or chairman of the parish council or parish meeting with whom the portion of the deposited plans and sections relating to the parish in which the lands affected are situate was deposited and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk of the district council or clerk or chairman of the parish council or parish meeting as the case may be with the other documents to which the same relate and thereupon the deposited plans and books of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Undertakers to take the lands and execute the works in accordance with such certificate.

Extension of
time for com-
pletion of
works under
Act of 1908.

25. The period limited by the Aire and Calder Navigation Act 1908 for the completion of the following works authorised by that Act (that is to say):—

- (a) The alteration (Work No. 5) of the opening bridge and the approaches thereof in the parish of Rothwell known as Bullough Bridge;
- (b) The alteration (Work No. 6) of the bridge and the approaches thereof in the parish of Stanley-cum-Wrenthorpe known as Harrison's Bridge;
- (c) The alteration (Work No. 7) of the bridge and the approaches thereof in the parish of Knottingley known as Kellingley Bridge;
- (d) The alteration (Work No. 8) of the bridge and the approaches thereof in the parishes of Beal (otherwise Beaghall) and Cridling Stubbs known as Stubbs Bridge; and
- (e) The road (Work No. 11) at Warehouse Hill in the city of Leeds;

is hereby extended for three years from the expiration of that period that is until the 1st day of August 1918.

26. The period limited by the Act of 1884 for the completion of the works authorised by that Act as extended by the Aire and Calder Navigation Act 1899 and the Aire and Calder Navigation Act 1908 is hereby further extended for seven years from the expiration of that period that is until the 28th day of July 1923.

A.D. 1914.
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 Extension of time for completion of Ouse Improvement Works.

27. The powers conferred upon the Undertakers by the Aire and Calder Navigation Act 1895 for the construction of the byewash near King's Road Lock in the parish and urban district of Altofts in the west riding of the county of York as extended by the Aire and Calder Navigation Act 1899 and the Aire and Calder Navigation Act 1908 are hereby revived and extended and may be exercised by the Undertakers in accordance with the provisions of the said Acts at any time within three years from the passing of this Act.

Revival of powers and extension of time for completion of King's Road Lock byewash.

28. The powers granted by the Aire and Calder Navigation Act 1908 for the compulsory purchase and taking of the lands in the parish and urban district of Knottingley the parish of Beal (otherwise Beaghall) and rural district of Pontefract and the parish of Cridling Stubbs and rural district of Pontefract described in section 12 of that Act and therein numbered (2) (3) and (4) are hereby revived and extended and may be exercised by the Undertakers at any time within but shall cease after the expiration of two years from the passing of this Act.

Revival of powers for purchase of lands under Act of 1908.

29. Whereas certain lands have from time to time been acquired by the Undertakers and certain other lands have been acquired by or become vested in them and the Sheffield and South Yorkshire Navigation Company jointly under and for the purposes of the Aire and Calder and River Dun Navigations Junction Canal Act 1891 to which lands the provisions of the Lands Clauses Consolidation Act 1845 with regard to the sale of superfluous lands apply or may apply but such lands are not immediately required for the purposes of the undertaking of the Undertakers or for the purposes of the undertaking authorised by the said Act of 1891 and it is expedient that further powers should be conferred on the Undertakers and on the Undertakers and the said Sheffield and South Yorkshire Navigation Company with respect to such lands respectively Therefore notwithstanding anything contained in the Lands Clauses Consolidation

Power to lease &c. lands.

A.D. 1914. Act 1845 or in any Act relating to the Undertakers with which that Act is incorporated or in the said Act of 1891—

(a) The Undertakers shall not be required to sell or dispose of any such lands as aforesaid already acquired by them or any lands to be acquired by them under this Act which may not be immediately required for the purposes of the undertaking of the Undertakers;

(b) The Undertakers and the Sheffield and South Yorkshire Navigation Company shall not be required to sell or dispose of any lands acquired by or vested in them jointly under or by the said Act of 1891 which may not be immediately required for the purposes of the undertaking authorised by that Act;

but the Undertakers and the Undertakers and the said Sheffield and South Yorkshire Navigation Company may retain hold and use and may lease or otherwise dispose of such lands respectively.

Amendment
of Acts of
1889 and
1895 in rela-
tion to
sunken and
unseaworthy
vessels.

30. In addition and without prejudice to the powers conferred on the Undertakers by sections 47 and 48 of the Aire and Calder Navigation Act 1889 and section 54 of the Aire and Calder Navigation Act 1895 the Undertakers may sell or otherwise dispose of the materials of any boat barge or vessel broken up by them under the powers of the last-mentioned section and may out of the proceeds of sale (if any) pay the expenses of such breaking up and the expenses of such sale returning the overplus (if any) to the person who under the provisions of the said section 54 is liable to pay the expenses of breaking up such boat barge or vessel and if the proceeds of sale (if any) be insufficient to defray such expenses the Undertakers may recover the deficiency summarily as a civil debt from the person so liable as aforesaid and may in like manner recover from such person the expenses of disposing of such boat barge or vessel otherwise than by sale.

Confirmation
of convey-
ance &c. re-
lating to
Hook Bank.

31. The deed of conveyance between the Right Honourable George Thomas John Sotheron Estcourt Baron Estcourt of the first part Joseph John Dunnington-Jefferson of the second part Frederick James Osbaldeston Montagu of the third part the urban district council of Goole of the fourth part and the trustees of the fifth part set forth in the First Schedule to this Act is hereby sanctioned and confirmed and made binding on the parties thereto and the Undertakers and the Undertakers

and the said district council may carry into effect the covenants on the part of the trustees and the said council respectively contained in the said deed and all works and things already executed and done in pursuance of the said deed and the expenditure of money in connection therewith by the Undertakers and the said council respectively are hereby sanctioned and confirmed. A.D. 1914.
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32. The deed of release dated the thirty-first day of December one thousand nine hundred and ten between Lampley Holmes George Clarkson Thomas Spink and James Lees the younger of the one part and the trustees of the other part set forth in the Second Schedule to this Act is hereby sanctioned and confirmed. Confirmation
of release of
31st Decem-
ber 1910.

33. The deed of grant and indemnity between the urban district council of Goole and the trustees set forth in the Third Schedule to this Act is hereby sanctioned and confirmed and made binding upon the parties thereto and the Undertakers and as from and after the date of the said deed the Undertakers shall be deemed to have been and shall henceforth be subject to the obligation to repair and maintain the portion of the south bank and foreshore of the Dutch River described in the said deed and the liability of the said district council and of any other corporation or person in respect of the repair and maintenance of such portion of the said bank and foreshore is as from and after the date aforesaid hereby determined. Confirmation
of convey-
ance of bank
of Dutch
River.

34. The Undertakers may appropriate and use for the purposes of this Act any lands belonging to or vested in them or the trustees at the date of the passing of this Act. Power to
appropriate
lands.

35. The Undertakers may apply to the purposes of this Act (but as respects borrowed money or the proceeds of the sale of lands or other money in the nature of capital only to purposes to which capital is properly applicable) any funds or capital belonging to or authorised to be raised or borrowed by them. Application
of funds of
Undertakers.

36. Subject to the provisions of this Act any of the works authorised by this Act to be constructed on over or under tidal lands below high-water mark shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being Works below
high-water
mark to be
subject to
approval of
Board of
Trade.

A.D. 1914. commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Undertakers and the amount of such cost shall be a debt due from the Undertakers to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of
works by
Board of
Trade.

37. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Undertakers under the powers of this Act on in over through or across tidal lands or tidal water or of the intended site of any such work the Undertakers shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Undertakers to the Crown and be recoverable as a Crown debt or summarily.

Abatement
of work
abandoned or
decayed.

38. If a work constructed by the Undertakers under the powers of this Act on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Undertakers and the amount of such expense shall be a debt due from the Undertakers to the Crown and be recoverable as a Crown debt or summarily.

Provision
against
danger to
navigation.

39. In case of injury to or destruction or decay of the works below high-water mark or any part thereof the Undertakers shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Board of Trade and shall apply to that Board for directions as to the means to be taken and the Undertakers shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Crown
rights.

40. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in

particular nothing herein contained authorises the Undertakers to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). A.D. 1914.

41. The costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Undertakers and such proportion thereof as the Undertakers think reasonable may be charged to the debit of the Lower Ouse Improvement Capital Account. Costs of Act.

A.D. 1914. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

THIS INDENTURE made the thirty-first day of December one thousand nine hundred and ten Between the Right Honourable GEORGE THOMAS JOHN SOTHERON ESTCOURT BARON ESTCOURT (hereinafter called "Baron Estcourt") of the first part JOSEPH JOHN DUNNINGTON-JEFFERSON of Thicket Priory West Cottingwith in the county of York Esquire of the second part FREDERICK JAMES OSBALDESTON MONTAGU of Melton Park Doncaster in the county of York Esquire of the third part the URBAN DISTRICT COUNCIL OF GOOLE (hereinafter called "the council") of the fourth part and the TRUSTEES OF THE AIRE AND CALDER NAVIGATION incorporated by the Aire and Calder Navigation Act 1899 (hereinafter called "the trustees") of the fifth part.

WHEREAS the parties hereto of the first three parts are seised of the hereditaments hereinafter described and expressed to be hereby granted for an estate of inheritance in fee simple or are able to sell and convey the same for the like estate and either as to the whole collectively or as to certain parts thereof in certain undivided shares or otherwise collectively and as to the other or remaining parts thereof severally and respectively:

And whereas there is upon the said hereditaments and on other lands in the parish of Snaith and the township of Hook hereinafter mentioned a certain bank called the Hook Bank and the liability of maintaining and supporting that bank is regulated by an inclosure award dated the thirteenth day of September one thousand seven hundred and seventy-five made in pursuance of an Act passed in the eighth year of His late Majesty George the Third (chapter 20 Local and Personal) intituled "An Act for dividing and inclosing the open
" common fields marshes waste grounds commons cars pasture and
" moor within the Manor of Hook in the parish of Snaith in the county
" of York and for maintaining the banks within the said manor and
" township":

And whereas by the Aire and Calder Navigation Act 1889 it was enacted that the Undertakers of the Aire and Calder Navigation might enter upon take and use for the purposes of their undertaking (amongst other lands) certain lands in the parish of Snaith and township of Hook aforesaid forming parts of the said Hook Bank and the waste lands adjoining thereto and extending from the northern end of the said bank called the Constables Banking in a north-easterly direction for a distance of two hundred and fifty-eight yards or thereabouts And that in the event of the said Constables Banking becoming vested in the Undertakers or of the Undertakers at any time acquiring any other portion of the Hook Bank mentioned in the said inclosure award the liability of maintaining and supporting such banking and portions of bank in manner directed by the said inclosure award should thenceforth be imposed upon the Undertakers and the persons liable to maintain and support the same previously to the vesting thereof in or acquisition by the Undertakers should be relieved from all further liability in respect thereof: A.D. 1914.
—

And whereas the parties hereto of the first three parts have agreed with the trustees for the sale to them of the said lands hereinafter described and expressed to be hereby granted for an estate in fee simple subject as hereinafter mentioned in consideration of the sum of three hundred and five pounds and of the covenants by the trustees hereinafter contained:

And whereas it will be for the benefit of the remainder of the estates belonging to the said parties hereto of the first three parts or which they are able to sell and convey as aforesaid respectively that such provision should be made for the future maintenance of the said Hook Bank and other the works hereinafter covenanted to be maintained by the trustees and that the said lands intended to be hereby assured should be henceforth appropriated to the uses and purposes hereinafter mentioned And it was a term of the said agreement for sale and part of the consideration therefor that the trustees and the council should enter into the covenants by them respectively hereinafter contained and that such provision should be made as is hereinafter contained for vesting part of the said premises in the council for the benefit of the residents upon the said estates as well as all other the inhabitants of the urban district of Goole:

Now THIS INDENTURE WITNESSETH that in pursuance of the said several agreements and in consideration of the sum of three hundred and five pounds to or by the direction of the parties hereto of the first three parts before the execution of these presents paid by the trustees (the payment as aforesaid of which said sum the parties hereto of the first three parts hereby acknowledge) They the said parties hereto of the first three parts as and according to the parts

A.D. 1914. — shares estates and interests now vested in them respectively or which they respectively are able to sell and convey of and in the hereditaments hereinafter described and in exercise of every power them respectively enabling in this behalf do hereby as beneficial owners grant appoint and convey unto the trustees All that piece or parcel of land situate in the said parish or township of Hook and containing by admeasurement five acres and six perches or thereabouts bounded on or towards the west by the road called the Goole Road otherwise Hook Road and on or towards the east by the River Ouse and delineated and coloured pink on the plan hereto annexed Together with all the mines and minerals thereunder To have and to hold all the said premises hereinbefore described and expressed to be hereby granted Unto and to the use of the trustees in fee simple Subject to all such duties and obligations as to the repair and maintenance of Hook Bank aforesaid as the parties hereto of the first three parts respectively and their respective successors in title were immediately before the execution of these presents or but for the execution hereof might otherwise be liable to by virtue of the said Act and award and subject also to the passage of soil and water through the drain or sewer passing under a portion of the said land into the River Ouse at the point marked A on the said plan and reserving also the right of access for the purpose of cleansing repairing and maintaining such drain or sewer :

Provided always and it is hereby declared that so far as regards the remainders expectant on the determination of any estate less than an estate in fee simple now vested in the said parties hereto of the first three parts respectively in the said premises and the title to and further assurances of such estates in remainder after their respective deaths the covenants by them respectively implied by reason of their being expressed to convey the said premises as beneficial owners shall not be deemed to extend to acts or defaults of any person other than themselves respectively and persons claiming under them respectively :

And the trustees hereby covenant (as separate covenants) with each of them the parties hereto of the first three parts and their respective successors in title That the trustees will forthwith commence and as soon as circumstances will permit complete on the land coloured pink on the said plan as aforesaid and on the adjoining lands of the trustees at the southern end thereof a new river bank partly on the site of and partly in substitution for the existing Hook Bank in the position shown by the hatched lines on the said plan hereto annexed and of the width height and section shown on the same plan and for ever thereafter maintain the same in accordance with the provisions of the said Act of 1775 and the said award and the Aire and Calder Navigation Act 1889 in like manner and with the same obligation in

A.D. 1914.

all respects as if such new bank were the bank referred to in the Acts and award but not further or otherwise And will in the course of or upon the completion of such new bank or as soon as the same can be done with safety remove and lower to the level of the adjoining lands in accordance with section shown on the said plan so much of the now existing bank and foreshore as shall not be occupied as the site of such new bank And will at all times hereafter save harmless and keep indemnified the said parties hereto of the first three parts respectively and all other persons claiming or to claim through under or in trust for or in succession to them respectively against all claims demands or liability by reason of any failure to maintain or repair the said Hook Bank or the new bank to be substituted therefor as aforesaid in accordance with the provisions of the said Acts and award pursuant to the covenant aforesaid And also (to the intent that this covenant may enure to the benefit of the said Frederick James Osbaldeston Montagu his heirs successors in title and assigns and others claiming through them to all or any of the lands belonging to him adjoining or near to the lands hereby conveyed) so much of the lands hereby assured as shall not be conveyed to the council as hereinafter agreed shall at all times remain open and unbuilt upon and that no part thereof shall be used for any business or commercial purpose But so that this covenant shall not prevent the construction maintenance and user of a cart road along the same lands on the river side of the said new bank And the trustees hereby covenant with the said Frederick James Osbaldeston Montagu his heirs successors in title and assigns that the trustees will at all times hereafter maintain in good and substantial repair so much of the said bank as is upon or within the said lands between the points marked B and C on the said plan and also the groin or stone heap on the foreshore of the river at the point marked D on the same plan And it is hereby agreed and declared and the council hereby covenants with the trustees and also (as separate covenants) with each of the parties hereto of the first three parts and their respective heirs and successors in title (and to the intent that this covenant may also enure to the benefit of the said Frederick James Osbaldeston Montagu his heirs successors in title and assigns and others claiming through them to all or any of the lands belonging to him adjoining or near to the lands hereby conveyed) that the council will within twelve calendar months after notice from the trustees that the said new bank is completed at their own expense lay out so much of the said land coloured pink on the said plan as shall remain between the foot of the inner slope of the said new bank so to be constructed as aforesaid and the Goole Road otherwise Hook Road and thereafter at all times at their own expense maintain the same as an ornamental public garden promenade and pleasure grounds for the use of the inhabitants

A.D. 1914.

of the district of the council and subject as aforesaid that the said land shall at all times remain open and unbuilt upon and that no part of it shall be used for any business or commercial purpose and likewise shall form and lay out on the surface or top of the said new bank and for the whole length thereof (but without lowering the same or affecting the efficiency thereof as a river bank) a promenade or pathway of the width of seven feet and six inches to be used by foot passengers only and for ever thereafter maintain the same at their own expense but in carrying out and maintaining such work the council shall not in any way interfere with or prejudicially affect the said new bank or the slopes thereof And also will at all times hereafter keep the trustees indemnified against all liability in respect of all rights (if any such there be) of common or pasture upon the said lands first hereinbefore described And it is hereby agreed and declared and each of them the council and the trustees hereby covenant with the other of them that so soon as the said land between the new bank and the Goole Road otherwise Hook Road shall be so laid out as aforesaid and the said promenade or pathway shall have been completed the trustees will in consideration of the sum of six hundred and sixty-six pounds thirteen shillings and fourpence to be paid by the council to the trustees convey to the council and the council will accept a conveyance of the said land between the new bank and the Goole Road otherwise Hook Road for the purposes aforesaid and the trustees will dedicate the said promenade or pathway as a public right of way for all persons on foot only for ever And will also (but subject to and so as not in any way to defeat lessen or prejudice any of the rights or powers of the trustees or the Undertakers of the Aire and Calder Navigation under the Ouse (Lower) Improvement Act 1884) grant to the council the right for all persons to embark upon and land from pleasure boats upon the frontage of the said land first hereinbefore described and expressed to be hereby granted between the points B and E with a right of way on foot to and from the same to the land to be conveyed to the council as aforesaid in such a manner as the trustees may appoint but so that in the exercise of such right no injury be done to the foreshore or the frontage to the river on the said new bank And such conveyance shall contain proper covenants by the council for giving effect to the provisions of these presents so far as regards the public use of the lands to be so conveyed :

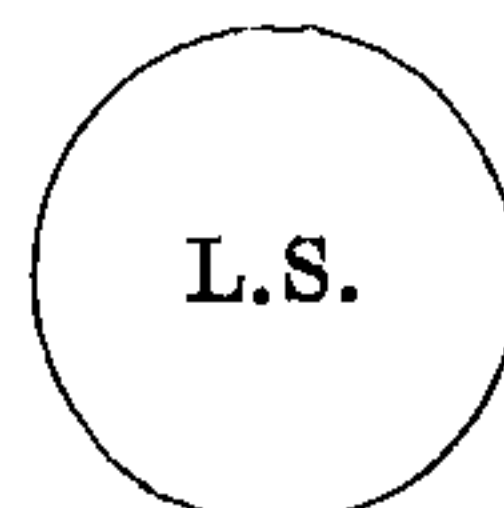
Provided always and it is hereby declared that the covenants by the trustees hereinbefore contained are to be deemed to bind the trustees in their corporate capacity and the undertaking of the Aire and Calder Navigation and other the property vested in the trustees on behalf of the Undertakers of the said navigation only and not to impose any personal liability on any of the persons now or at any

time hereafter constituting the corporate body of the trustees of the Aire and Calder Navigation as the corporators thereof. A.D. 1914.

In Witness whereof the parties hereto of the first second and third parts have hereunto set their hands and seals and the council and the trustees have hereunto caused their respective common seals to be affixed the day and year first before written.

Signed sealed and delivered
by the said Right Honour-
able George Thomas John
Sotheron Estcourt Baron
Estcourt in the presence of

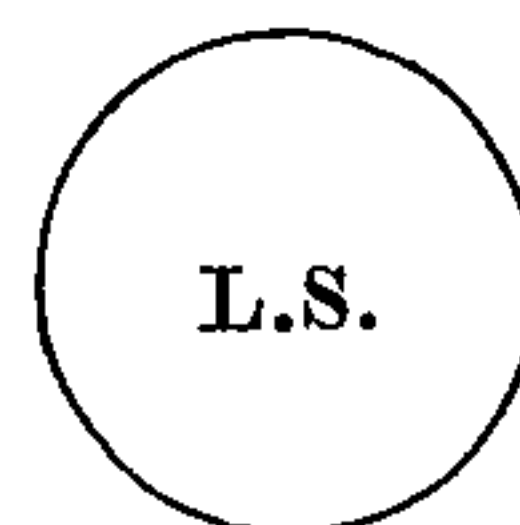
(GEORGE THOMAS
JOHN SOTHERON
ESTCOURT)
ESTCOURT.



J. W. H. GRAY
Estcourt Tetbury
Land Agent.

Signed sealed and delivered
by the said Joseph John
Dunnington-Jefferson in the
presence of

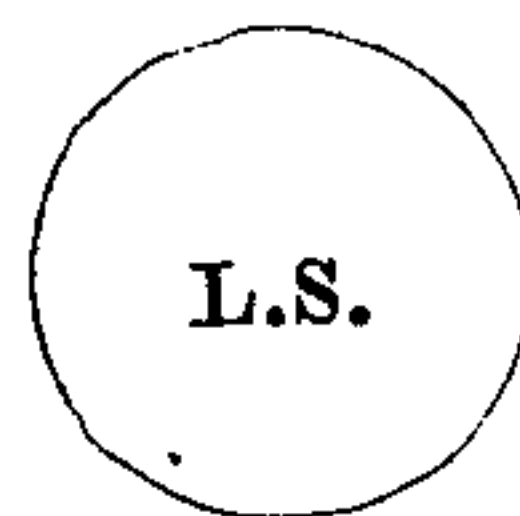
J. J. DUNNINGTON-
JEFFERSON.



KENNETH T. MACTURK Solicitor
South Cave.

Signed sealed and delivered
by the said Frederick James
Osbaldeston Montagu in the
presence of

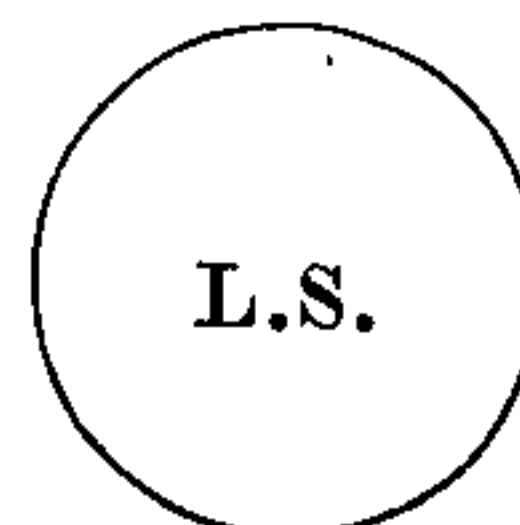
F. J. O. MONTAGU.



ARTHUR VINCENT
Lynford Hall
Mundford Valet.

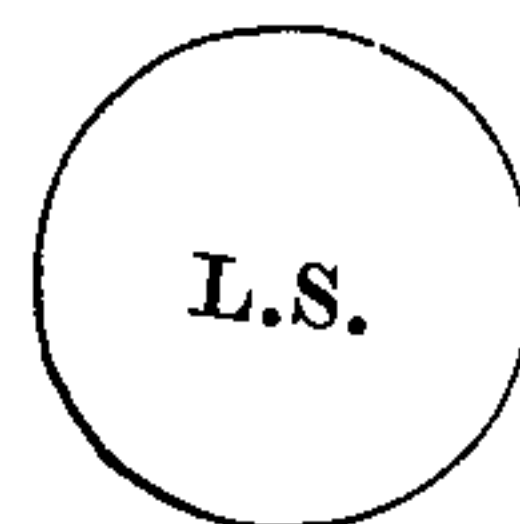
The common seal of the urban district council of
Goole was affixed hereto in the presence of

W. E. GRAYBURN Chairman.
ROBERT TYSON Clerk.



The common seal of the trustees of the Aire and
Calder Navigation was affixed hereto in the
presence of

W. W. WARDE-ALDAM Trustee.
S. BARRACLOUGH Secretary.



A.D. 1914.

THE SECOND SCHEDULE.

THIS INDENTURE made the thirty-first day of December one thousand nine hundred and ten between LAMPLEY HOLMES GEORGE CLARKSON THOMAS SPINK and JAMES LEES the younger all of Hook in the county of York (hereinafter called "the committee") of the one part and the TRUSTEES OF THE AIRE AND CALDER NAVIGATION (hereinafter called "the trustees") of the other part.

WHEREAS the committee and divers other persons inhabitants and owners and occupiers of lands and tenements within the manor of Hook in the county of York are or claim to be entitled to rights of common pasture for their horses and cattle upon or within the unenclosed lands within the manor aforesaid and such rights are usually known and are hereinafter referred to as lane gates and the persons exercising such rights or alleged rights are called and are hereinafter referred to as the stockers:

And whereas the trustees are the owners of or otherwise interested in the lands (or some of them) described in the schedule hereto and such lands or some parts or part thereof are or is or are or is alleged to be subject to lane gates and the trustees are desirous that such rights so far as regards the same lands should be extinguished and cease:

And whereâs at a meeting of the stockers held on the seventh day of December one thousand nine hundred and eight it was resolved that the stockers agreed to release and abandon their rights of pasturage and all other rights if any in the road and lands described in the said schedule to the lords of the manor for the sum of three hundred pounds and that the committee should be and they were thereby authorised to execute the necessary deed of release and appointed trustees for the stockers and responsible for the money and that a clause should be inserted in the deed of release authorising the investment of the money in trust or other good security or in the purchase of grass land in Hook the income to be derived from the money if invested in other than grass land to be applied in accordance with the byelaws of the stockers and if and when invested in grass land the grass to be eaten according to the regulations contained in the said byelaws:

And whereas for the purpose of carrying into effect the arrangement aforesaid the trustees have at the request and with the

concurrence of the committee and the lords of the manor aforesaid paid the sum of three hundred pounds into the bank of Barclay and Company Limited at Goole in the said county of York to be used for the purposes aforesaid unless and until some person or persons shall exercise or purport to exercise a right of pasturage upon the premises described in the said schedule or some part thereof as a stocker or stockers and in virtue of the lane gates aforesaid and upon further trust if and whenever there shall be such exercise or attempted exercise from time to time as and when the same shall happen to repay the said sum of three hundred pounds to the trustees or their assigns in case the same shall not have been used or invested as aforesaid or in case of such user or investment to exclude the stockers from any land or hereditaments which may have been purchased with the said money or any part thereof and apply the rents and profits thereof in making full satisfaction and compensation to the trustees or their assigns or other the persons interested in the premises comprised in the said schedule and to apply the income of any other investment of the said sum or any portion thereof in the same manner until such exercise or attempted exercise has ceased and such full satisfaction and compensation has been paid:

Now THIS INDENTURE WITNESSETH that in consideration of the premises and in exercise of the power and authority conferred on them by the resolution aforesaid the committee as well on their own behalf as well as on the behalf of the stockers do hereby absolutely and for ever release renounce and disclaim all and every the right of pasturage and every other commonable rights which under the name of lane gates or otherwise the stockers have or have at any time exercised in upon or over the road and lands described in the said schedule hereto to the intent that the same may be held and enjoyed freed and discharged from such right of pasturage or other rights of the stockers.

IN WITNESS whereof the committee have hereunto set their hands and seals and the trustees have caused their common seal to be hereunto affixed the day and year first before written.

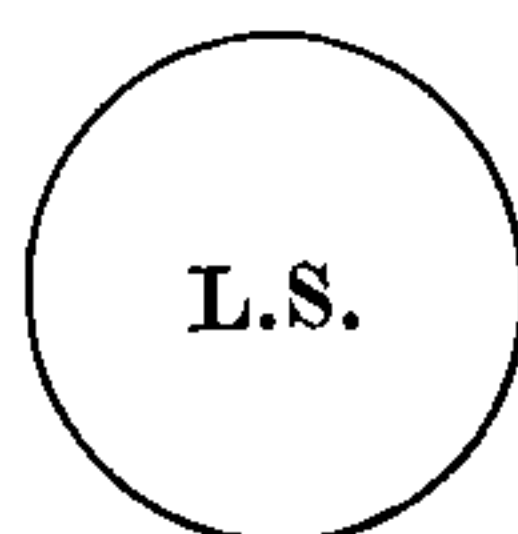
The **SCHEDULE** above referred to.

All that lane or road now called Hook Road in Goole in the county of York between Murham Clough and the North Eastern Railway bridge including the strip of waste alongside lying between the fences on the east and west sides thereof respectively and all that piece of land lying

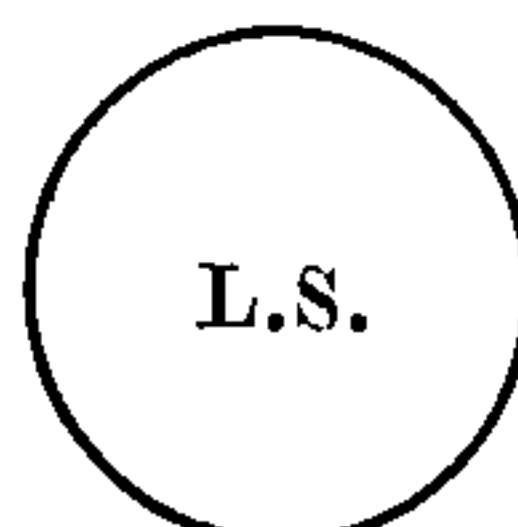
[Ch. xxxiii.] *Aire and Calder Navigation* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. between the said Hook Road and the River Ouse and extending from the vicarage to the town of Goole.

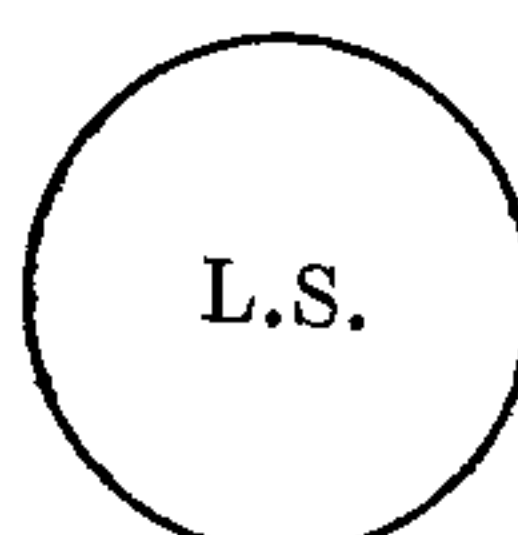
Signed sealed and delivered }
by the said Lampley Holmes } LAMPLEY HOLMES.
in the presence of
KENNETH T. MACTURK Solicitor
South Cave.



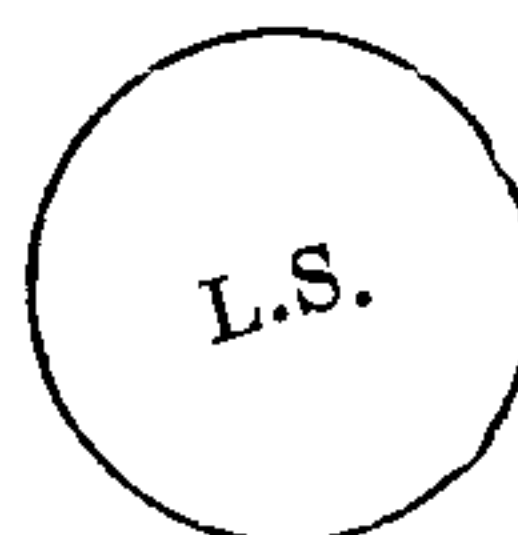
Signed sealed and delivered }
by the said George Clarkson } GEORGE CLARKSON.
in the presence of
KENNETH T. MACTURK.



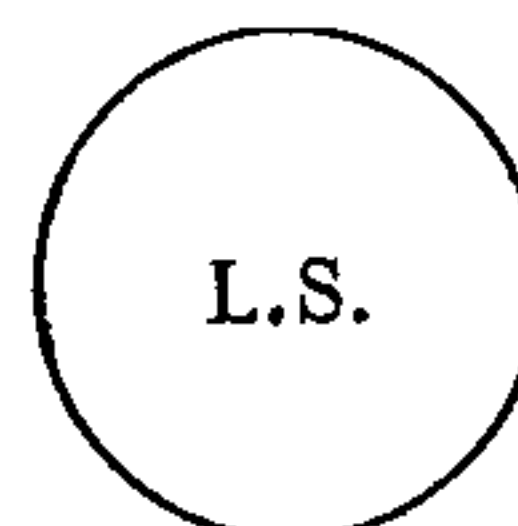
Signed sealed and delivered }
by the said Thomas Spink } THOMAS SPINK.
in the presence of
KENNETH T. MACTURK.



Signed sealed and delivered }
by the said James Lees in } JAMES LEES Junr.
the presence of
KENNETH T. MACTURK.



The common seal of the trustees of the Aire and }
Calder Navigation was affixed hereto in the }
presence of
W. SHEEPSHANKS Trustee.
S. BARRACLOUGH Secretary.



THE THIRD SCHEDULE.

THIS INDENTURE made the seventeenth day of May one thousand nine hundred and twelve between the URBAN COUNCIL FOR THE DISTRICT OF GOOLE (hereinafter called "the council") of the one part and the TRUSTEES OF THE AIRE AND CALDER NAVIGATION incorporated under the Aire and Calder Navigation Act 1899 (hereinafter called "the navigation") of the other part.

WHEREAS by an indenture dated the twenty-first day of January one thousand eight hundred and eighty-six and made between the corporation of the level of Hatfield Chase of the one part and the Goole Local Board of the other part All the right interest and estate of

the said corporation in the land and hereditaments described in the First Schedule hereto was granted and conveyed Unto and to the use of the board their successors and assigns And by the same indenture the board for themselves their successors and assigns covenanted promised and agreed to and with the said corporation their successors and assigns in manner set out in the Second Schedule hereto: A.D. 1914.

And whereas the benefit of the said last recited conveyance is now vested in the council as successors of the said Goole Local Board:

And whereas it is to the public interest of the inhabitants of Goole and the neighbouring district that the repair of the bank hereinafter referred to should except as hereinafter mentioned be undertaken by the navigation and it has accordingly been agreed that the council shall execute such conveyance as is hereinafter contained in consideration of the covenant and indemnity on the part of the navigation hereinafter mentioned:

NOW THIS INDENTURE WITNESSETH that in consideration of the covenant and indemnity on the part of the navigation hereinafter set forth they the council do hereby grant and convey Unto the navigation All the right interest and estate of the council in the land and hereditaments described in a certain indenture dated the twenty-first day of January one thousand eight hundred and eighty-six and made between the corporation of the level of Hatfield Chase of the one part and the Goole Local Board of the other part and described in the First Schedule hereto Reserving nevertheless to the council their successors and assigns full and free access from time to time as occasion may require in upon or over such part of the hereditaments hereby conveyed as is necessary not exceeding four yards on either side thereof for the purpose of repairing renewing maintaining altering enlarging (subject however to the previous reasonable approval of the plans therefor by the navigation's engineer) or cleansing the Dempster drain and also the sewer outfall hereinafter mentioned and the works connected therewith they the council making good all damage done thereby and restoring the surface as soon as may be To hold unto and to the use of the navigation their successors and assigns for ever:

AND THIS INDENTURE FURTHER WITNESSETH that in consideration of the aforesaid grant they the navigation do hereby for themselves their successors and assigns covenant promise and agree to and with the council their successors and assigns that they the navigation will at all times hereafter observe and perform the covenant on the part of the Goole Local Board set out in the Second Schedule hereto except in respect of the sewer outlet through the said bank and the drain culvert and clough called Dempster drain and will keep the council their successors and assigns indemnified against all claims and

A.D. 1914. demands in respect of the future breach non-observance and non-performance thereof except as aforesaid:

—
AND IT IS FURTHER WITNESSED that in consideration of the premises the council do for themselves their successors and assigns covenant promise and agree to and with the navigation their successors and assigns that they the council will at all times hereafter maintain and keep in good repair and properly managed and attended to the sewer and sewer outfall through the hereditaments described in the First Schedule and the tidal doors and other works connected therewith and also the drain culvert and clough called Dempster drain and shall and will save harmless and keep indemnified the navigation their successors and assigns from and against all and all manner of action and actions suit and suits distress costs losses charges and expenses whatsoever which may be instituted or prosecuted against or paid by the navigation their successors or assigns for or in consequence of the said sewer sewer outfall tidal doors and other works or any part thereof and the said drain culvert and clough called Dempster drain not being so repaired maintained managed or attended to or in consequence of the same or any part thereof being from any cause other than the default of the navigation defective or proving insufficient.

IN WITNESS whereof the council and the navigation have caused their respective common seals to be hereunto affixed the day and year first hereinbefore written.

The FIRST SCHEDULE above referred to.

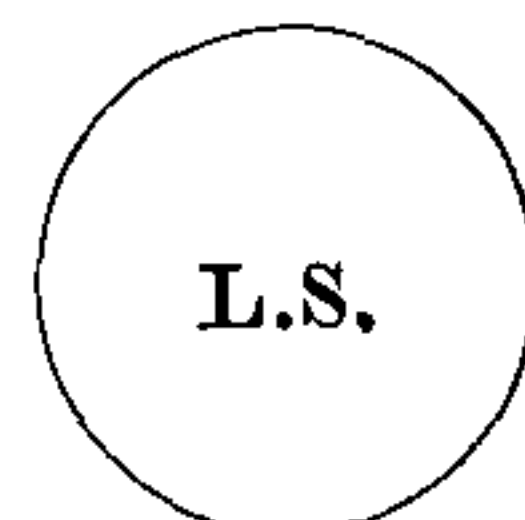
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All that portion of the south bank and foreshore of the Dutch River situate in the township of Goole in the county of York and shown and defined in the plan drawn on the second skin of the said Indenture of the twenty-first day of January one thousand eight hundred and eighty-six and extending from the point marked "A" to the point marked "B" on the said plan And the southern moiety of the said river co-extensive therewith And also the drain culvert and clough called Dempster Drain having its outlet in the said Dutch River at the point marked "C" on the said plan.

The SECOND SCHEDULE above referred to.

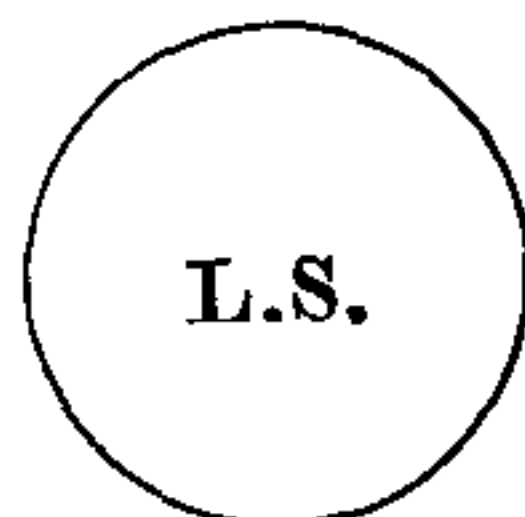
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"That they the said board their successors and assigns shall and will at all times hereafter maintain and keep in repair the said bank foreshore culvert and clough so that the same may continue effectually

to protect the said township of Goole and the country adjacent from floods and shall and will save harmless and keep indemnified the said corporation their successors and assigns of from and against all and all manner of action and actions suit and suits distress costs losses charges and expenses whatsoever which may be instituted or prosecuted against or paid or borne by the said corporation their successors or assigns for or in consequence of the said portion of the south bank and foreshore of the said Dutch River shown and defined on the said plan and the said culvert and clough or any part thereof not being repaired and maintained or for or on account of any flooding of or damage to the adjacent country in consequence of the same portion of the said South Bank and the said culvert and clough from any cause being defective or proving insufficient for protecting the said township and adjacent country from floods and damages thereby.”

The common seal of the urban council for the district }
of Goole was hereunto affixed in the presence of }
WILLIAM JACKSON Chairman.
ROBERT TYSON Clerk to the Council.



The common seal of the trustees of the Aire and }
Calder Navigation was hereunto affixed in the }
presence of }
W. W. WARDE-ALDAM Trustee.
S. BARRACLOUGH Secretary.



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